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IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,	)	No. 25CN02140
	)	
Plaintiff,	)	
	)	
vs.	)	MEMORANDUM OF LAW IN
	)	SUPPORT OF MOTION TO
BARRY WASHINGTON,	)	SUPPRESS SEARCH AND ARREST
	)	
Defendant.	)	HEARING REQUESTED
	)	(SCHEDULED)

INTRODUCTION

On May 10, 2025 Barry Washington was arrested pursuant to an arrest warrant issued by Washington County Community Corrections. Washington County Sherriff’s deputies entered Mr. Washington’s residence to arrest him under the authority of the warrant. Mr. Washington was arrested in the same home where Ashle Penn lived, and deputies discovered in the days after the arrest that Mr. Washington was subject to a release agreement barring his contact with Ms. Penn. This contempt prosecution followed. The Defense moves to suppress the search of the home and Mr. Washington’s arrest under Article I, § 9 of the Oregon Constitution on the basis that the State will be unable to produce a valid written warrant authorizing Mr. Washington’s arrest.

1 **BACKGROUND¹**

2 In the morning of May 10, 2025, Washington County Sheriff's deputies responded to a
3 domestic disturbance call at 17458 NW Springville Road apartment 9 in Portland, Oregon. The
4 caller was Avery Penn, who called to report that his daughter, Ashle Penn, wanted the police to
5 respond to an incident that occurred between her and her boyfriend, Barry Washington. At
6 approximately 6:42am, dispatch informed the responding officers that there was an active
7 warrant for Mr. Washington's arrest. When the deputies arrived at the residence, Ms. Penn
8 answered the door and informed them that she no longer required their assistance. The deputies
9 told Ms. Penn that Mr. Washington had a warrant for his arrest and that he needed to come out of
10 the apartment. Ms. Penn asked if the warrant was still active, and the deputies confirmed that it
11 was. The officers asked Ms. Penn for permission to enter the premises to arrest Mr. Washington,
12 and Ms. Penn declined. At first, Ms. Penn informed the deputies that Mr. Washington was on his
13 way out of the apartment. After approximately 10 minutes, the deputies entered the residence
14 with weapons drawn and arrested Mr. Washington.

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17 Unbeknownst to the deputies at the time of Mr. Washington's arrest, Mr. Washington
18 was subject to an active release agreement which ordered that Mr. Washington was to have "no
19 contact with co-defendant Ashle Penn." At the time, Mr. Washington was charged with Theft in
20 the Second Degree for an incident that Ms. Penn was also involved in. On May 12, 2025, the
21 Washington County Deputy District Attorney prosecuting Mr. Washington for the theft, Jade
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25 ¹ The facts in this memorandum are taken from the police reports, WCCCA incident detail reports,
26 and body-worn camera. They are presented for the sole purpose of this written Memorandum. Mr.
Washington does not adopt as true any of these facts nor are they to be construed as admissions by
Mr. Parham. Additional or contradictory evidence may be presented at the suppression hearing.

1 Sawyer, asked deputy David Rambin to confirm if Mr. Washington and Ms. Penn were the
2 parties involved in the arrest on May 10th. Deputy Rambin confirmed that they were the parties
3 involved, and the State then filed this contempt matter.

4 The warrant that caused deputies to search Ms. Penn’s apartment for Mr. Washington
5 was issued by the Local Control Authority, Washington County Community Corrections
6 (WCCC), on November 26, 2024. WCCC issued the warrant on November 26, 2024 in response
7 to a warrant request filed by Mr. Washington’s probation officer, Molly McBride. Officer
8 McBride alleged in her report that Mr. Washington violated the conditions of his post-prison
9 supervision (PPS) by failing to report, using intoxicating substances, and completing a substance
10 use evaluation as directed.² The WCCC warrant was entered into the Law Enforcement Data
11 System (LEDS), but no written or signed warrant was prepared or issued.
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14 **LAW AND ARGUMENT**

15 The search of Ms. Penn’s residence for Mr. Washington, as well as any fruits of that
16 search, should be suppressed because the warrant issued by the Local Control Authority failed to
17 meet Oregon constitutional and statutory requirements and therefore could not support the search
18 of the residence. Article I, § 9 of the Oregon Constitution protects against unreasonable searches
19 and seizures. A search conducted without a warrant is per-se unreasonable unless it “fall[s]
20 within one of the few specifically established and carefully delineated exceptions to the warrant
21 requirement.” *State v. Meharry*, 342 Or 173, 177 (2006). Police officers may search enter private
22 premises to make an arrest if there is a valid arrest warrant and probable cause to believe that the
23 subject of the arrest warrant is present on the premises. ORS 133.235(5); *State v. Jordan*, 288 Or
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26 ² That report is filed with this motion as exhibit 1

1 391, 402 (1980).

2 Supervisory authorities, including WCCC, may order the arrest of any person under their
3 supervision upon being informed and having reasonable grounds to believe that such person has
4 violated the conditions of parole, post-prison supervision, probation, conditional pardon or other
5 conditional release from custody. ORS 144.350. ORS 144.360 establishes that any such order
6 issued by a supervisory authority constitutes “full authority for the arrest and detention of the
7 violator, and all the laws applicable to warrants of arrest shall apply to such orders.”
8

9 In general, the state bears the burden of proof in a suppression hearing when a search or
10 seizure is warrantless, and the defendant bears the burden of proof when the search or seizure is
11 authorized by a warrant. *State v. Walker*, 350 Or 540, 553 (2011); *see also State v. Johnson*, 335
12 Or 511, 520 (2003). When a search or seizure is based on a warrant, the warrant is presumed
13 valid and the Defendant has the burden of demonstrating otherwise. *Walker*, 350 Or at 554.
14 However, when the existence or basic validity of a warrant is challenged, the State must either
15 produce the warrant and demonstrate its validity or demonstrate that the arrest was supported by
16 a warrant exception and probable cause. *State v. Perrodin*, 315 Or App 252, 262–3 (2021); *State*
17 *v. Pitz*, 317 Or App 8, 16 (2022). If the State opts for the first option and proves the validity of
18 the warrant, the burden then shifts to the defense. *Id.* (citing *State v. Jennings*, 220 Or App 1, 5
19 (2008), where the state made a *prima facie* case that a search was lawful by introducing the
20 warrant at the hearing on defendant's motion to suppress, shifting the burden to the defense).
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23 Here, the arrest warrant issued by WCCC failed to meet the requirements of the “laws
24 applicable to warrants of arrest” because the warrant was not in writing and did not include a
25 sworn statement. Evidence obtained from searches arising from a defective warrant is subject to
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1 suppression. *State v. Perrodin*, 315 Or App 252, 261 (2021) (citing *Noble*, 314 Or at 632); *See*
2 *also State v. Beckstead*, 164 Or App 538, 541 (1999).

3 **I. The arrest warrant issued by WCCC cannot justify the search and arrest because it**
4 **was not supported by a sworn oath or affirmation and because the State will be**
5 **unable to produce the warrant itself.**

6 Article I, § 9 provides that “no warrant shall issue but upon probable cause, supported by
7 oath, or affirmation, and particularly describing the place to be searched, and the person or thing
8 to be seized.” Except for limited exceptions, all warrants must be supported by oath or
9 affirmation. *Noble*, 314 Or at 632; *State v. Beckstead*, 164 Or App 538, 541 (1999). Article I, § 9
10 applies to arrest warrants as well as to search warrants. *State v. Brown*, 96 Or App 171, 175
11 (1989) (citing *State v. Flynn*, 137 Or. 8, (1931)).

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13 In *Perrodin*, a detective investigated the defendant for dealing methamphetamine.
14 *Perrodin*, 315 Or App at 254. The detective searched for the defendant in a “law enforcement
15 database,” discovering that the defendant had a felony parole violation warrant for his arrest. *Id.*
16 The detective did not view the physical warrant with a judge’s signature or observe an affidavit
17 but only saw the computer entry that flagged the warrant. *Id.* The detective then arrested the
18 defendant on the parole violation warrant after the defendant left his apartment. *Id.* The detective
19 questioned the defendant, searched him, and found incriminating evidence. *Id.*

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21 The Defendant moved to suppress, alleging that the arrest warrant was not supported by a
22 sworn statement of probable cause. *Id.* at 263. The State never produced an arrest warrant during
23 its prosecution of the defendant. *Id.* The Court of Appeals held that, because the State neither
24 produced the parole violation warrant nor demonstrated that the search was supported by
25 probable cause and a warrant exception, the trial court should have suppressed the evidence
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1 found in the search. *Id.*

2 As in *Perrodin*, the Defense expects that the State will be unable to produce the warrant
3 which directed officers to arrest Mr. Washington. The State will similarly be unable to show that
4 the warrant was supported by a sworn statement, oath, or affirmation. The document attached as
5 exhibit 1 is a digital copy of the warrant request that Officer McBride³ submitted to WCCC. The
6 warrant request does not contain a sworn statement constituting an “oath or affirmation” under
7 Article I, § 9. *See* ORS 133.545(6), (7) (describing the requirements of an affidavit or sworn
8 statement for search warrants); *See also State v. Brown*, 96 Or. App. 171, 175 (1989) (noting that
9 unsworn statements before the court were insufficient to support an arrest warrant). If the State is
10 unable to make a prima facie case proving the validity of the arrest warrant which formed the
11 basis of the residence in this case, or if the Court ultimately finds that the arrest warrant was
12 invalid, the search and its fruits should be suppressed.
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15 **II. The arrest warrant issued by WCCC failed to meet statutory requirements because**
16 **it was not in writing.**

17 A warrant of arrest must be in writing. ORS 133.140 (establishing the required contents
18 and form of arrest warrants). The issue of whether a probation violation warrant must be in
19 writing as required by ORS § 133.140(1) was addressed in *State v. Meier*, 145 Or App 179, 181
20 (1996). In *Meier*, an officer surveilled the defendant in his vehicle and suspected that he was
21 selling drugs, but he did not develop probable cause to arrest. *Id.* at 181-2. The officer
22 approached the defendant who admitted that he possessed a knife and a baseball bat. *Id.* The
23 officer then called the defendant’s parole officer and told him about the bat, the knife, and his
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26 ³ At the time she submitted the warrant request, Officer McBride’s last name was Bineham.

1 suspicions of drug activity. *Id.* A condition of the defendant's probation was that he consent to a
2 search upon reasonable grounds to believe that evidence of a parole violation would be found. *Id.*
3 The investigating officer told the defendant that he had reasonable grounds to believe that he was
4 violating his probation and requested a search, which the defendant refused. *Id.* The parole
5 officer then verbally directed the investigating officer to arrest the defendant for a parole
6 violation. *Id.*
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8 The defendant in *Meier* moved to suppress, arguing that ORS 144.360 (applying all laws
9 applicable to warrants to probation, parole, and PPS violation arrest orders) and ORS 133.140(1)
10 (requiring that all warrants shall be in writing) jointly required the probation officer's arrest order
11 to be in writing. *Meier*, 145 Or App at 183. The Court held that the arrest order was not required
12 to be in writing and that therefore the arrest was lawful. *Id.* at 185. The Court reasoned that,
13 when a police officer directly observes a person in the general public commit a crime, that
14 officer may arrest that person without a warrant, and by extension, a police officer acting on the
15 authority of a parole officer who possessed reasonable grounds to believe that the parolee
16 committed a parole violation in their presence also had the authority to make a warrantless arrest.
17 *Id.* The Court declined, however, to decide whether a written order or warrant based on a
18 probation violation is required in other circumstances. *Meier*, 145 Or App at 185 n. 6.
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21 Here, unlike in *Meier*, the alleged probation violation was unrelated to any conduct that
22 the arresting officers observed on May 10, 2025. The *Meier* court analogized the officer's
23 warrantless arrest based on his contemporaneous observations of the defendant to a warrantless
24 arrest based on direct observations of a crime being committed. The more appropriate analogy to
25 the warrant and arrest in this case is to an arrest warrant issued by a judge based on an oath or
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1 affirmation that the subject of the warrant has committed a crime. Such a warrant would be
2 required to be in writing under ORS 133.140(1). Because such a warrant would be required to be
3 in writing under that statute, the warrant authorizing Mr. Washington's arrest should have also
4 been in writing. If this Court does not find that a valid warrant was issued for Mr. Washington's
5 arrest was issued in writing, the Court should find that his arrest and the search effectuating that
6 arrest were unlawful.
7

8 CONCLUSION

9 The Defense expects that the State will be unable to produce a valid warrant
10 constitutionally and statutorily sufficient to support Mr. Washington's search and arrest on May
11 10, 2025. If the State is unable to produce said warrant, the Court should suppress all derivative
12 evidence of the search and arrest.
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14 DATED this July 3, 2025.

15 /s/Jake Brugger
16 Jake Brugger, OSB #244423
17 Attorney for Defendant
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